

24STCV12225 24STCV12225

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-06-26

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Case Number: 24STCV12225 Hearing Date: June 26, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: June 26, 2026 TRIAL DATE: NOT SET

CASE: Adir International, LLC v. Katana

Racing, Inc.

CASE

NO.: 24STCV12225

DEMURRER TO COMPLAINT

MOVING

PARTY: Defendant Katana Racing, Inc.

RESPONDING

PARTY(S): Plaintiff

Adir International, LLC

TENTATIVE RULING:

Katana

Racing's Demurrer to the Complaint is OVERRULED.

Katana

is to serve and file its Answer within thirty (30) days of this order.

Moving Party to give notice.

BACKGROUND

This

is a breach of contract action. Adir alleges that Katana abandoned a rental unit it had subleased.

DISCUSSION:

Katana

Racing demurs to the Complaint in its entirety. The Court overrules the demurrer.

Legal

Standard

A

demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.)

Analysis

Katana

argues that Adir cannot maintain any of its causes of action because the Complaint admits that Adir accepted Katana's relinquishment of the subject premises. It is true that a lease may ordinarily be terminated by the surrender of the property and the landlord retaking possession. (Rognier v. Harnett (1941) 45 Cal.App.2d 570, 573-74.) This is so even if the landlord takes actual possession after abandonment of the premises and a repudiation of the lease by the tenant. (Id.) However, the issue of whether there has been a

surrender and an unqualified acceptance of possession are questions of fact to be determined from the whole transaction. (Id. at 572.)

Katana

contends that the Complaint admits that Adir accepted the keys from Katana on January 27, 2024, (Complaint ¶ 36) and thereafter re-entered the premises and began removing a partition that had been erected. (Complaint ¶¶ 62-63.)

Katana

ignores that Adir also alleges that the keys were accepted by Adir's weekend staff by mistake, and that, when the mistake was discovered, Adir instructed its staff to immediately halt work. (¶¶ 36-37.) Put differently, Adir alleges that it did not exercise unqualified acceptance of the premises.

There

is thus, accepting the allegations of the Complaint as true and construing them in Adair's favor, a factual dispute about whether there was a surrender and an unqualified acceptance of possession.

That is enough to require the Court to overrule the demurrer.

Meet

and Confer

Before

filing a demurrer, the demurring party shall meet and confer in person or by telephone or video conference with the party who has filed the pleading subject to the demurrer and file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41(a).) However, an insufficient meet and confer process is not grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41(a)(4).)

Counsel

for the parties met and conferred telephonically on July 26, 2024, but could not resolve this dispute. (Declaration of Armen Hairapetian ISO Dem. ¶ 8.) This is sufficient.

CONCLUSION:

Accordingly, Katana

Racing's Demurrer to the Complaint is OVERRULED.

Katana

is to serve and file its Answer within thirty (30) days of this order.

Moving Party to give notice.

IT IS

SO ORDERED.

Dated: June 26, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you

submit on a tentative ruling the court will still conduct a hearing if any

party appears. By submitting on the tentative you have, in essence, waived your

right to be present at the hearing, and you should be aware that the court may

not adopt the tentative, and may issue an order which modifies the tentative

ruling in whole or in part.